

MASTER SERVICES AGREEMENT

This Master Services Agreement ("**Agreement**") is retroactively entered into as of December 15, 2023, by and between XYZ (UK) International Limited with its principal offices at Acre House, [REDACTED], [REDACTED], United Kingdom (hereafter referred to as "**Provider**"), and ABC with an office at [REDACTED] (referred to as "**Company**").

1. SERVICES. Provider and/or its pre-approved affiliates will perform services ("**Services**") for Company pursuant to work assignments and in accordance and subject to the terms of this Agreement, which are agreed to by individuals authorized by both parties, which shall include, but not be limited to providing offshore staffing support variety of projects on behalf of Company or its client(s) identified on the Statements of Work. Provider agrees to provide dedicated personnel to support the Company on project assignments identified on a separate written Statement of Work referencing this Agreement and signed by both parties (the "Statement of Work" or "SOW") attached hereto as Exhibit A.

Provider shall cause a Background Check (as defined below) to be completed on all employees, personnel, contractors, or agents assigned by Provider to provide Services hereunder prior to the date such Services commence, and shall not assign any individuals to provide Services to Company if the results of any Background Check, or Provider's actual knowledge, indicate that such Personnel may pose a threat to Company's property, clients, employees, property or Confidential Information or if such individual would be otherwise unsuitable for assignment. For purposes of this Section, a "Background Check" means a reputable investigative agency that conducts background checks in the relevant country(ies), utilizing database checking, field checking and interviews as needed, and shall include, but not be limited to, (i) a check of felony and misdemeanor criminal convictions (federal, state and local jurisdiction) for at least the immediately preceding ten (10) year period, (ii) searches of the U.S. Government Specially Designated National (OFAC) and export denial lists and relevant national and state sex offender registries and (iii) verification of the individual's citizenship and legal right to work in the jurisdiction in which the individual would be performing the Services. Provider will provide the results of any and all such background checks to Company upon Company's request.

2. SERVICE LEVELS. Provider shall perform the Services at levels of accuracy, quality completeness, timeliness, responsiveness, resource efficiency and productivity that are equal to or higher than the accepted industry standards of leading providers of similar services.

In providing such Services, Provider shall comply with reasonable instructions, delivery procedures and training requirements as provided by the Company from time to time. Company may, in its sole reasonable discretion, request removal of any Provider personnel, contractor(s) or agent(s) from providing Services under any Statement of Work. Provider shall promptly provide a suitable replacement personnel, contractor(s) or agent(s) with commensurate skill and ability at no additional cost to Company. Provider will submit to Company the resumes and other information reasonably requested by Company of any personnel, employee, contractor or agent assigned by Provider to perform Services for or create or provide deliverables to Company under this Agreement. The number of Provider personnel engaged to render Services under a particular

Statement of Work shall be agreed between the parties in the relevant Statement of Work. The Parties shall cooperate in establishing the applicable volume of transactions during any baselining period allowed for in the relevant Statement of Work. With effect from the end of any such baselining period, Company shall provide a rolling volume demand forecast covering a six (6) month period, taking into account any data collected during the baselining period and Company's expectations of future demand (the "Volume Forecast"). Provider shall:

- i) cooperate with Company in establishing the Volume Forecast and provide information and data as requested by Company;
- ii) perform the Services in accordance with this Agreement allowing for reasonable service volume fluctuations, including without limitation transaction volume changes of up to plus or minus ten percent (+ / - 10%) above or below the Volume Forecast in any given month, without any change to the number of Provider personnel or Charges; and
- iii) notify Company in the event that the volume of transactions increases or decreases by more than ten percent (10%) as against the Volume Forecast for a period of three (3) consecutive months, in which case the parties shall discuss any changes required to the number of Provider personnel and/or the Charges. Any such change must be agreed between the parties in advance and is subject to the Change Control Procedure.

3. TERM; TERMINATION. The term of this Agreement is initially for five (5) years from the date of this Agreement, and shall automatically extend annually thereafter unless mutually agreed otherwise. Notwithstanding anything to the contrary, Company shall (i) have no obligation to commit to any volume, minimum fee, or any other commitment, (ii) not be required to utilize any Provider services and/or products, and (iii) shall be free to procure any same or similar services from any other person or entity.

Unless otherwise agreed in the relevant SOW for a reduced period, Company may terminate this Agreement or any Statement of Work (in whole or in part) at any time without cause upon one hundred twenty (120) days prior written notice to Provider. In addition, Company may terminate this Agreement within ten (10) days written notice to Provider if Provider materially breaches this Agreement or any Statement of Work and fails to cure the breach during the notice period. Provider may terminate this Agreement upon thirty (30) days prior written notice to Company if Company breaches this Agreement or any Statement of Work and fails to cure the breach during the notice period. Except for Provider's material breach of this Agreement or any Statement of Work, upon termination, Company shall pay Provider fees for the Services as set forth in this Agreement, that are actually and properly performed and accepted by Company, up to the termination date.

Provided that Provider makes commercially reasonable efforts to mitigate all fees and costs (including its own fees/costs and any third-party fees/costs), Company shall pay the following termination fees to the Provider in the event the Agreement or any SOW is terminated, in whole or in part, by Company for convenience; or by Provider for cause:

- a) payment for all the unavoidable /pre-approved in writing uncancellable costs committed to be incurred by Provider on behalf of Company as agreed under each SOW; and

- a) b) wind down charges will be estimated and agreed between the parties to be mentioned in the applicable SOW.

4. COMPENSATION. Provider shall receive compensation as outlined in each Statement of Work for projects and / or Services ("**Charges**"). Each Statement of Work shall outline the project description or nature of the Services, timeline, cost, invoicing terms and additional terms, if any. Any increase in the compensation with respect to inflation will be included in the applicable Statement of Work. All fees mentioned are exclusive of any sales tax, use tax or similar taxes if applicable.

5. PAYMENT. Provider shall invoice Company in United States Dollars (USD) for the Services in the Statement of Work at the end of each month for the performance of the Services during that month, or as more specifically defined in the SOW. Such undisputed amounts or undisputed invoices shall be paid in full by Company forty-five (45) days of the invoice date. Invoices submitted beyond sixty (60) days of the end of a month when services were performed will not be paid. In case of any discrepancy in the invoice, Company shall notify Provider of such discrepancy within ninety (90) days from the date of its receipt of the invoice, failing which the invoice shall be deemed to be accepted by the Company. Post the expiry of 90 days, the Client shall have the right to raise a dispute in case of any discrepancy and both parties shall mutually resolve such dispute in good faith.

Notwithstanding anything to the contrary in this Agreement, if Company fails to make the payment of invoices by the due date, Provider may notify Company in writing of Company's payment default and shall be entitled to suspend Services if payment is not received within seven (7) business days of such written notice. If payment remains outstanding beyond the seven (7) day period, Provider may terminate this Agreement or the applicable SOW by providing seven (7) days final written notice to Company.

6. LOCATION OF WORK. The work performed by Provider shall be performed at the Provider's address set forth above or as otherwise set forth on the Statement of Work. Provider will perform the Services only using technology, systems, equipment or materials provided or approved by Company, and shall not, nor permit any of its personnel, contractors or agents, to remove any information, materials or other Company property from, or perform any Services outside of, Company's technology, systems, equipment or materials without Company's express prior written consent.

7. INDEPENDENT CONTRACTOR. Nothing contained in this Agreement shall be construed to imply a joint venture, partnership, or principal-agent relationship between the parties, and neither party by virtue of this Agreement shall have any right, power, or authority to act or create any obligation, expressed or implied, on behalf of the other party. Neither shall this Agreement be construed to create rights, expressed or implied, on behalf of or for the use of any parties, aside from Company and Provider; and Provider and Company shall not be obligated, separately or jointly, to any third parties by virtue of this Agreement. Neither Provider, nor any of Provider's personnel, contractors, agents or employees, shall be considered an employee or an agent of Company or any of Company's clients, nor shall Provider or its personnel, contractors, agents or employees be entitled or eligible to participate in, any benefits or privileges given or extended by Company to its employees, or be deemed an employee of Company for purposes of Federal or State withholding taxes, F.I.C.A. taxes, and Unemployment benefits, or otherwise. Provider assumes all legal responsibilities for full compliance with all applicable payroll tax requirements. In addition to any other indemnification obligations set forth herein, Provider shall indemnify, hold harmless and defend Company, its clients, and their respective directors, officers, affiliates and agents

from any claims brought by Provider's personnel, contractors, agents or employees related to employment related claims.

8. INDEMNIFICATION AND LIMITATION OF LIABILITY.

(a) Provider will indemnify, defend and hold harmless Company, its clients, and their respective directors, officers, affiliates and agents from and against any and all costs, expenses, damages, claims, suits, actions, liabilities, judgments and losses (including reasonable counsel fees and court costs) to the extent arising from a third-party, in connection with, or related to: (i) the Services or any deliverable violating any applicable laws, rules or regulations relevant to the provision of Services by the Provider, or in spite of strict compliance with any licensening restrictions and Company's instructions in fact the Services or deliverables infringes intellectual property rights of any third party, including, without limitation, copyrights, trademarks, trade secrets patents ; (ii) bodily injury or death or property loss or damage; (iii) Provider's gross negligence or wilfull misconduct or (iv) any claim or liability for insurance premiums maintained by Provider, contributions, or tax payments or claims under any workmen's compensation, unemployment compensation, disability benefit or tax withholding with respect to Provider or any employee of Provider while assigned by Provider to the prosecution of the work called for by this Agreement. Provider will defend Company against such claim and will indemnify Company for any judgments, settlements and court awarded attorney's fees resulting from a claim. This indemnity obligation shall survive the termination of this Agreement.

(b) Company will indemnify Provider and keep Provider fully and effectively indemnified against all direct liabilities, reasonable and necessary costs, damages and expenses incurred by Provider as a result of any final judgement from a court of competent jurisdiction that Company data, Company Intellectual Property, Company's designs, specifications or instructions, software products owned, used, provided or licensed by Company and used by Provider in the provision of Services in strict compliance with any licensening restrictions and Companys instructions in fact infringes the intellectual property rights of any third party.

(c) The indemnifying party shall have no liability for any intellectual property infringement claim based upon: (i) any modification not conducted or authorized by indemnifying party in writing; (ii) use of Services in combination with other programs or data, where such combination results in an infringement claim, (iii) use of the Services in a way not provided for or described in the applicable documentation and/or the Statement of Work or otherwise contemplated having regard to the nature of the Services; and(iv) any claim solely arising due to a third party software or open source software. Without prejudice to Company's rights under Clause 8 (a), in the event of any third party claims that the provision of Services by Provider infringes the intellectual property rights of such third party, Provider shall at its cost either (at its option, but with permission of Company, which will not be unduly withheld): use alternative methods to perform the Services in order to avoid any infringement; or obtain the right to continue using the work process or method in question.

(d) NOTWITHSTANDING ANYTHING SET FORTH IN THIS AGREEMENT, IN NO EVENT WILL EITHER PARTY BE LIABLE FOR ANY CONSEQUENTIAL OR INDIRECT LOSS OR DAMAGES, OR ANY LOSS OF ANTICIPATED SAVINGS, LOSS OF GOODWILL, LOSS OF PROFITS, LOSS OF USE OF ANY EQUIPMENT OR PROCESS ARISING FROM OR AS A RESULT OF THIS AGREEMENT

(e) EXCEPT FOR (I) PROVIDER'S INDEMNIFICATION OBLIGATIONS SET FORTH IN SECTION 8 (a) (i) (ii) AND (iv), (II) COMPANY'S PAYMENT OBLIGATIONS UNDER THE AGREEMENT, (III) AND ANY LIABILITIES OR LOSSES CAUSED BY A PARTY'S GROSS NEGLIGENCE, WILFUL MISCONDUCT OR VIOLATION OF SECTION 10 (CONFIDENTIAL INFORMATION), EACH PARTY'S AGGREGATE LIABILITY FOR ALL DIRECT LOSSES, LIABILITIES

AND DAMAGES ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, INCLUDING ANY SOW, (REGARDLESS OF FORM OF ACTION, WHETHER BASED ON CONTRACT, WARRANTY, TORT (INCLUDING NEGLIGENCE), STATUTE OR OTHERWISE) SHALL IN NO EVENT EXCEED A SUM EQUAL TO THE GREATER OF (A) USD \$190,000.00 (ONE HUNDRED NINETY THOUSAND DOLLARS) OR (B) THE CHARGES (EXCLUDING PASS THROUGH EXPENSES AND TAXES, IF ANY) PAID DURING THE IMMEDIATELY PRECEDING EIGHTEEN (18) FROM THE DATE THE APPLICABLE CLAIM AROSE, PROVIDED FURTHER THAT, ALL LOSSES, LIABILITIES AND DAMAGES ARISING OUT OF OR IN CONNECTION WITH PROVIDER'S FAILURE TO SATISFY ANY OF ITS OBLIGATIONS RELATED TO PERSONAL DATA, INCLUDING ITS OBLIGATIONS UNDER CLAUSE 12 (*DATA PRIVACY*), CLAUSE 13 (*INFORMATION TECHNOLOGY*) (INCLUDING ANY EXHIBIT OR OTHER ATTACHMENT REFERENCED THEREIN) AND ANY RELATED INDEMNIFICATION OBLIGATIONS SHALL IN NO EVENT EXCEED A SUM EQUAL TO THE CHARGES (EXCLUDING PASS THROUGH EXPENSES AND TAXES, IF ANY) PAID DURING THE PREVIOUS TWENTY-FOUR (24) MONTHS UNDER THE APPLICABLE SOW.

9. INSURANCE. Provider agrees that, during the term of this Agreement and for one (1) year thereafter, it shall maintain the following insurance to cover Provider's obligations hereunder:

1. Commercial General Liability, to include Bodily Injury, Property Damage, Personal and Advertising Injury, and Contractual Liability - \$1M per occurrence and \$2M in the annual aggregate
2. Business Auto Liability (applicable only for Provider US entities located in the US), for all non-owned, and hired autos, with a combined single limit for Bodily Injury and Property Damage of \$1M per accident
3. Workers Compensation (applicable only for Provider US entities located in the US) – statutory limits based on jurisdictions in which Provider operates.
4. Employer liability with a minimum limit of \$1M per accident
5. Umbrella/Excess Liability, to provide excess limits of 1., 2., and 4. in the amount of \$ 2M per occurrence and in the annual aggregate.
6. Cyber Liability (also known as data security) insurance with a minimum of \$2 million per occurrence and \$2 million in the annual aggregate limit .
7. Professional Liability/Errors & Omissions, to cover t h e Company's legal liability arising out of negligent acts, errors, or omissions by or on behalf of Provider's Services relating to this Agreement in the amount of \$2M per claim and in the annual aggregate. If on a claims-made form, the policy will be maintained for a minimum of two years after the conclusion or termination of this Agreement, or provide an extended reporting period for the same period.

Provider's insurance policies shall be endorsed to include Company as an additional insured on 1. Waiver of subrogation should apply in favor of Company on 1, . Provider's policies should be endorsed to be primary and non-contributory for 1 and 2 provided that such primary policies will apply only with respect to Services/Deliverables and only to the extent the underlying claim is attributable to Provider. All policies will be placed with a minimum of Best Rating A- VII (or rated with the equivalent ratings applicable in other geographies) insurance companies.

Within ten (10) days of the execution of this Agreement, and annually thereafter, Provider agrees to provide a certificate of insurance to Company evidencing the above insurance requirements.

10. CONFIDENTIAL INFORMATION. In order that each party may fulfill the requirements of this Agreement, it may be necessary or desirable for each party or Company's clients ("Disclosing Party") to disclose confidential and proprietary information pertaining to the past, present, and future activities

of Disclosing Party and Company's clients to the other Party ("Receiving Party"). Since it is difficult to separate confidential and proprietary information from that which is not, Receiving Party will instruct his employees, agents, independent contractors, and subcontractors to regard all information gained by each such person, as a result of the Services to be performed hereunder, as information which is proprietary to Disclosing Party or Company's clients and not to be disclosed to any third party. Receiving Party shall at all times keep secret and inviolate all such business knowledge or information which it not or hereafter comes to know of Disclosing Party or Company's clients business or operations due to any Services rendered pursuant to this Agreement. Receiving Party's obligations hereunder shall survive the termination of this Agreement and shall not be deemed subject to any condition precedent. Upon termination of this Agreement or at any other time upon request by the Receiving Party shall promptly return all confidential or proprietary information to Disclosing Party. The confidentiality obligations shall not apply in case (i) such information is required to be disclosed in connection with a valid order of a court or government, or (ii) such information is public knowledge or already known to such Receiving Party at the time of disclosure, or (iii) subsequently becomes public knowledge other than by breach of this Agreement, or (iv) subsequently comes lawfully into the possession of such Receiving Party from a third party who does not have confidentiality obligations to Disclosing Party.

When performing Services, Provider shall require all personnel, including Provider's employees, agents, independent contractors, and subcontractors assigned to perform Services for the Company or its clients, to sign an agreement acknowledging certain matters regarding confidentiality and assignment of work product (such Agreement to be in the form of Schedule 1). For the avoidance of doubt, Provider shall be responsible for any acts or omissions of its employees, agents, independent contractors, and subcontractors in breach of this Agreement.

11. LEGAL COMPLIANCE. Provider its affiliates and any of their respective officers, directors, supervisors, managers, agents, employees, third-party vendors, subcontractors and/or other representatives (collectively "Provider"), ensures that it has conducted its business in compliance with any and all applicable laws, rules and regulations, including, without limitation, anti-corruption and/or bribery laws, including, but not limited to the U.S. Foreign Corrupt Practices Act of 1977, the UK Bribery Act 2010 and any other local laws that may apply, and has instituted and maintained policies and procedures designed to promote and achieve compliance by Provider with such laws. If Provider fails in any way to abide by this section, such failure shall be considered a material breach of this Agreement and Company may terminate the Agreement upon thirty (30) days prior written notice to Company if Provider fails to cure the breach during the notice period. Each party shall comply with all applicable laws relating to its respective obligations under this Agreement. Company shall notify Provider of any Company compliance requirements that are to be flowed down to Provider.

12. DATA PRIVACY. The parties acknowledge and agree that select Services or deliverables may involve access to limited Company and/or client information related to identified or identifiable persons ("Personal Data"). The parties agree that such limited Company and/or client information may be obtained by Provider in the ordinary course of maintaining its business relationship with and/or through performing the Services or providing the deliverables. The parties acknowledge and agree that with regard to the collection, processing and/or transfer of Personal Data, Provider agrees to comply with the terms of a separate Data Processing Agreement to be executed between the parties.

13. INFORMATION TECHNOLOGY. Provider warrants that it shall comply with Company's IT Acceptable Use Policy as may be amended from time to time.

14. AUDIT. At reasonable times, not exceeding once per year, and on reasonable notice of not less than twenty (20) days prior to carrying out such an audit to Provider, during the term of this Agreement, Company shall have the right to examine Provider's books and records which pertain specifically to Provider's Services and charges hereunder.

Further, the Company acknowledges that any audits performed pursuant to and/or the exercise of rights under this Clause shall not entitle the Company to inspect any data, information, or records to the extent that such materials relate to any other customer or any other sub-contractor nor to inspect the employment contracts, costings, margins or other internal data of Provider or any sub-contractor. In addition, the Company shall ensure that the auditors comply with Provider's security (including Information Security), safety, and other site-specific regulations and procedures whilst on the sites, and the auditors/inspectors shall be escorted at all times by Provider's personnel.

15. WARRANTY. Provider represents and warrants that : (i) it will perform the Services hereunder in a good and professional manner in accordance with standards and practices that are generally accepted in the industry and exercised by other persons engaged in performing similar services; (ii) it has the proper skill, training and experience to provide the Services, (iii) it has the full corporate right, power and authority to enter into this Agreement and to perform the

acts required of it hereunder, (iv) the Services and any deliverables, information, statements or materials prepared or provided by or on behalf of Provider and Company's use thereof, will not infringe upon or violate any applicable laws or rights of any party, including, without limitation, any third party intellectual property right or right of privacy, provided that Client's sole and exclusive remedy for the breach of this warranty will be the indemnification obligation set forth in section 8 (a) (i), (v) the execution of this Agreement and the performance of its obligations hereunder, do not and will not violate any agreement to which it is a party or by which it is bound, (vi) when executed and delivered, this Agreement will constitute the legal, valid and binding obligation of Provider, enforceable against it in accordance with its terms; and (vii) it shall at all times be in compliance with all applicable laws, rules and regulations relevant to the provision of Services by the Provider, including CAN-SPAM requirements.

Provider further represents and warrants that neither Provider nor any Provider personnel, contractors or agents performing the Services hereunder has been sanctioned, excluded, debarred, suspended, or is otherwise ineligible to participate in any state, federal or national healthcare programs or restricted, excluded or debarred from participating in activities regulated by the U.S. Food and Drug Administration or similar government entity. Should Provider, any of its personnel, contractors or agents who are directly concerned with the performance of the Services become sanctioned, debarred, excluded or restricted, the Provider shall notify Company in writing as soon as reasonably possible and in no event later than forty-eight (48) hours from the Provider's receipt of notice of the same. Company may, at its sole discretion i) cause Provider to promptly remove such personnel, contractors or agents and promptly provide a qualified replacement at no additional cost to Company or ii) terminate this Agreement if Provider fails to be compliant within thirty (30) days.

If and to the extent that Provider is unable to provide Services in accordance with the service levels or unable to perform its duties, obligations and responsibilities hereunder (i) as a result of Company's breach of an obligation or inaccurate representation or warranty made by Company, or (ii) due to Provider's reliance on business processes, instructions, applications and systems that are owned, designed, maintained, managed or provided by Company ("Company Provided Systems") or defects therein, then Provider shall be excused from its obligations to render the affected portion of the Services in accordance with the service levels, provided that Provider will promptly notify Company in writing upon becoming aware of such breach or inaccuracy so as to give Company sufficient opportunity to remedy the same, and upon such cure by Company, Provider shall continue to be obligated to perform such Services in accordance with the applicable SOW.

Except as specified herein, each Party disclaims all warranties of any kind, express, implied, or statutory, including without limitation, the implied warranties of merchantability, non-infringement, title, and fitness for a particular purpose.

16. PROPRIETARY RIGHTS. Company shall own and retain all intellectual property rights in all of Company's pre-existing materials and materials created outside the scope of this Agreement and all back-end components and software code, including but not limited to, scripts, and programs created by Company (collectively, the "Company Materials"). Provider

and/or its Affiliates are and shall remain the sole and exclusive owners of all rights, title, and interest in and to its pre-existing materials, including all intellectual property rights therein ("Provider Materials"). For the purpose of this Agreement and/or any SOW, "Provider Materials" means all intellectual property, documents, data, know-how, methodologies, software, and other materials, including computer programs, reports, and specifications, whether or not provided or used by Provider in connection with performing the Services, in each case, developed or acquired by Provider prior to the commencement or independently of this Agreement. In addition, except for materials subject to third party licenses, the Company shall own and retain all intellectual property rights in all deliverables which are created for Company in accordance with this Agreement. Provider expressly acknowledges that the materials contributed by Provider under this Agreement and Provider's Services hereunder are being specially ordered and commissioned by Company. All of Provider's contributions hereunder shall be considered "works made for hire" as defined by the copyright laws of the United States. Company shall be the sole and exclusive owner and copyright proprietor of all rights and title in and to the results and proceeds of Provider's Services hereunder in whatever stage of completion. If for any reason the results and proceeds of Provider's Services hereunder are determined at any time not to be a "work made for hire", Provider hereby irrevocably transfers and assigns to Company all right, title and interest therein, including all copyrights, as well as all renewals and extensions thereto. Provider agrees that Company may make any changes or additions to the deliverables, which Company in its sole discretion may consider necessary, and may engage others to do any or all of the foregoing, with or without attribution to Provider. Provider further agrees to waive any so-called moral rights in the deliverables. Provider represents that Provider is the sole author of the deliverables and all of Provider's Services are original and not copied in whole or in part from any other work.

17. REMEDIES. In the event that either party hereto breaches any of its obligations hereunder, the other party will be entitled to such relief as is available in law or in equity. A waiver of a breach or default under this Agreement shall not be a waiver of any other or subsequent default.

18. RIGHTS CUMULATIVE; WAIVER. Each right, power, and remedy provided for in this Agreement, now or hereafter existing under any applicable law or otherwise, shall be cumulative and concurrent and shall be in addition to every other right, power, or remedy which the parties hereto may have. The exercise or beginning of the exercise by a party of any or all such other rights, powers, or remedies shall not preclude the simultaneous or later exercise of any or all such rights, powers, or remedies. No failure or delay by a party to insist upon the strict performance of any term or condition of this Agreement or to exercise any right, power, or remedy consequent upon a breach thereof, shall constitute a waiver of any such term, condition, covenant, or Agreement or any such breach, or preclude a party from exercising any such right, power, or remedy at a later time or times. Any waiver by either party of a breach of any provision of this Agreement shall not operate as or be construed to be a waiver of any other breach of such provision or of any breach of any other provision of this Agreement. Any waiver must be in writing and signed by the party to be charged therewith.

19. NOTICES. All notices, requests, consents and other communications hereunder to either party shall be deemed to be sufficient if contained in a written instrument delivered in person, or duly sent by first class registered or certified mail, postage prepaid, by email, or by

facsimile with a confirmation copy by regular mail, addressed to such party at the following address:

If to Company:

P [REDACTED]
[REDACTED]
[REDACTED]

ATTN: General Counsel, Legal Email: [legaldept](#) [REDACTED]

If to Provider:

XYZ (UK) [REDACTED]
Address: [REDACTED]
[REDACTED] [s.com](#)

With a copy sent to the attention of:

Group General Counsel
XYZ Private Limited

✓

[REDACTED]
[REDACTED]

20. SEVERABILITY. The invalidity or unenforceability of any provision hereof shall in no way affect the validity or enforceability of any other provision of this Agreement.

21. ASSIGNMENT. Provider shall not assign this Agreement without the written consent of Company. No such assignment shall relieve Provider of its duties and obligations under this Agreement without the specific written consent of Company. Company may not assign this Agreement or any or all of its rights or obligations under this Agreement without the written consent of Provider.

22. SUB-CONTRACT. Provider shall not sub-contract any of the work performed under this Agreement without written permission of Company.

23. ENTIRE AGREEMENT. This Agreement constitutes the entire Agreement of the parties with regard to the specific subject matter hereof and supersedes all prior written and/or oral understandings between the parties. As the final written expression of all of the agreements and understandings among the parties hereto, this Agreement is an exhaustive and complete expression of the parties' intent and therefore may be modified only by a writing signed by all of the parties.

24. CAPTIONS. Titles and paragraph headings are inserted as a convenience and by way of reference only, and in no way limit, enlarge, define, or otherwise affect the scope or intent

of this Agreement or any provision hereof, and are in no way to be construed as part of the Agreement.

25. PROVIDER'S APPROVAL AND ACKNOWLEDGMENT. Provider acknowledges that Provider has thoroughly read this Agreement, understands it, and agrees to be bound by its terms and further agrees that it is the complete and exclusive statement of the Agreement between the parties, which supersedes all proposals, oral or written, and all communications between the parties relating to the subject matter of this Agreement.

26. JURISDICTION; VENUE. This Agreement will be governed by and construed in accordance with the laws of the United States and the laws of the Texas, USA. Each of the parties hereto hereby submit to the exclusive jurisdiction of the courts of the State of Texas, USA in any suit, hearing or other legal proceeding of every nature, kind and description whatsoever in the event of any dispute or controversy arising hereunder or relating hereto.

27. FORCE MAJEURE. Neither Party shall be liable to the other for its failure to perform any of its obligations under this Agreement, during any period in which such performance is delayed due to circumstances beyond its control to the extent the delay or failure is due in whole or in part to any acts of god such as fire, explosion, flood and storm, war, civil disturbance, general strike, pandemic, epidemic, general lockout or other general labor dispute, embargo, failure of power or any other similar/dissimilar cause beyond the reasonable control of a party (herein referred to as "Force Majeure"), provided that the party experiencing the delay promptly notifies the other of the delay.

28. GOVERNANCE: During the course of the relationship, Provider and the Company will establish a risk / governance forum to discuss issues that are likely to impact the overall program. One of the agenda items of the risk / governance forum will be to discuss identified operational risks and measures proposed to address these risks. Both parties will nominate member(s) of their risk management team to be represented on the risk / governance forum, which will meet at least on a quarterly basis. Either party can highlight operational risks in the risk / governance forum along with appropriate remedial measures to contain such risks. Both parties, in good faith, will take reasonable measures to remedy any weaknesses in their systems and / or business processes and will discuss and agree on any additional commercial implications arising out of such remedial measures.

29. NON-SOLICITATION. Unless otherwise agreed in the SOW, neither Party shall (except with the prior written consent of the other) during the Term of the applicable SOW and for a period of six (6) months thereafter, on behalf of itself or any of its affiliates, solicit the services of any personnel of the other Party who has been engaged in the provision of the Services or the management or performance under this Agreement or any significant part thereof either as principal, agent, employee, independent contractor or any other form of employment or engagement. The foregoing shall not apply where such staff has responded to a *bona fide* public advertisement.

30. CHANGE CONTROL PROCEDURE: Either Party may by notice in writing to the other Party request a change to the Services or any related change under the Agreement or SOW by giving details of the proposed change, cost impact analysis, proposed date of implementation and subsequently execute a Change Order document ("**Change Order**"). Such Change Orders shall only be valid and effective if mutually executed in writing.

IN WITNESS HEREOF, the parties hereto have caused this Agreement to be executed under seal as of the day month and year first above written.

ABC

DocuSigned by:
Vivek Kumar
341103F05D6440D

[Redacted]

[Redacted]

Printed Name

[Redacted]

Title

XYZ (UK)

[Redacted]

DocuSigned by:
John Hayward
4A88E4B1910A748D

Signature

[Redacted]

Printed Name

General Counsel

Title

Certificate Of Completion

Envelope Id: 1ABDC3F67785488680A683A4D1E64F33

Status: Completed

Subject: Sonrava Health_MSA_15-12-2023 from Icertis Inc

Source Envelope:

Document Pages: 12

Signatures: 2

Envelope Originator:

Certificate Pages: 5

Initials: 0

AutoNav: Enabled

Envelopeld Stamping: Enabled

Time Zone: (UTC-05:00) Eastern Time (US & Canada)

Record Tracking

Status: Original

Holder: IcertisCLMSupport@

Location: DocuSign

12/28/2023 9:06:21 AM

Signer EventsSignatureTimestamp

Chief Credit Officer

Security Level: Email, Account Authentication (None)

DocuSigned by: 341103FD5D644DD...

Signature Adoption: Pre-selected Style Using IP Address: 198.90.73.10

Sent: 12/28/2023 9:07:29 AM

Viewed: 12/28/2023 10:14:56 AM

Signed: 12/28/2023 7:47:09 PM

Electronic Record and Signature Disclosure:

Accepted: 12/28/2023 7:46:48 PM

ID: 63725ce4-ae6a-40f2-aa09-38ac4a31c368

General Counsel

WNS Denali

Security Level:

DocuSigned by: 4A0DE4B19CA148B...

Signature Adoption: Pre-selected Style Using IP Address: 86.9.199.50

Sent: 12/28/2023 7:47:10 PM

Viewed: 12/29/2023 6:56:14 AM

Signed: 12/29/2023 6:56:23 AM

Electronic Record and Signature Disclosure:

Accepted: 9bb3-fa13fcb387ec

In Person Signer EventsSignatureTimestamp

Editor Delivery EventsStatusTimestamp

Agent Delivery EventsStatusTimestamp

Intermediary Delivery EventsStatusTimestamp

Certified Delivery EventsStatusTimestamp

Carbon Copy EventsStatusTimestamp

At.

Security Level: Email, Account Authentication (None)

Electronic Record and Signature Disclosure:

Accepted: 11 AM

ID: 6fddfc43-1ed3-47d7-892a-410c19dceddb

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Sent: 12/28/2023 9:07:29 AM

Viewed: 12/28/2023 9:10:58 AM

Witness Events	Signature	Timestamp
Notary Events	Signature	Timestamp
Envelope Summary Events	Status	Timestamps
Envelope Sent	Hashed/Encrypted	12/28/2023 9:07:29 AM
Certified Delivered	Security Checked	12/29/2023 6:56:14 AM
Signing Complete	Security Checked	12/29/2023 6:56:23 AM
Completed	Security Checked	12/29/2023 6:56:23 AM
Payment Events	Status	Timestamps
Electronic Record and Signature Disclosure		

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Browsers (for SENDERS):	Internet Explorer 6.0? or above
Browsers (for SIGNERS):	Internet Explorer 6.0?, Mozilla FireFox 1.0, NetScape 7.2 (or above)
Email:	Access to a valid email account
Screen Resolution:	800 x 600 minimum
Enabled Security Settings:	• Allow per session cookies • Users accessing the internet behind a Proxy Server must enable HTTP 1.1 settings via proxy connection

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